

Indra Sawhney v. Union of India (Mandal Case)

Citation: 1992 Supp (3) SCC 217 | Court: Supreme Court | Year: 1992

Coram: 9-Judge Constitution Bench (6:3 Majority) | Subject: Constitutional Law | Provisions: Articles 16(4), 16(1), 340

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Upheld 27% reservation for Other Backward Classes (OBCs) in central public employment. Laid down the 50% ceiling rule on total reservations, mandated the exclusion of the 'Creamy Layer', and held that Article 16(4) does not permit reservation in promotions.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Articles 16(4), 16(1), 340. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Articles 16(4), 16(1), 340.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Backwardness must be both social and educational. Economic criteria alone cannot be the sole basis of reservation under Article 16(4). The 50% reservation limit ensures efficiency of administration under Article 335 and protects general merit.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Upheld 27% OBC reservation while capping total reservations at 50%.
- â€ Introduced the mandatory 'Creamy Layer' exclusion test.
- â€ Held that reservations under Article 16(4) apply to initial entry, not promotions.